

24NWCV01784 24NWCV01784

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-21

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Case Number: 24NWCV01784 Hearing Date: July 21, 2026 Dept: P

GILYANNA, ET AL. v. CHP HOSPITAL MANAGEMENT, LLC,
ET AL.

CASE NO.: 24NWCV01784

HEARING: 07/21/2026 @

9:30 AM

#9

TENTATIVE ORDER

I.

Plaintiff

Korinne Gilyanna's motion to
compel depositions is GRANTED IN PART, DENIED IN PART, and MOOT IN PART. See
below for a detailed ruling.

II.

Plaintiff's

request for monetary sanctions is DENIED.

III.

Plaintiff's

motion for a protective order is taken OFF CALENDAR.

Moving party to give notice.

There are two motions on calendar: (1) Plaintiff Korinne Gilyanna (Plaintiff) moves to compel Defendant CHP Hospital Management, LLC dba Coast Plaza Hospital (Defendant) to produce certain employees and agents for deposition with production of documents and (2) Plaintiff moves for a protective order as to Defendant Lindsey Chan's request for admissions, set one.

Background

On June 5, 2024, Plaintiffs Korinne Gilyanna, individually and as successor in interest to the Estate of Steven Esner, and Stuart Esner filed this medical malpractice action against CHP Hospital Management, LLC dba Coast Plaza Hospital, Coast Plaza Doctors Hospital, a California limited partnership, David Tao, M.D. (Dr. Tao), Aida Salatinjants, M.D. (Dr. Salatinjants), Patricia Luu, NP., and Does 1 to 100 (collectively, Defendants). On December 17, 2024, Plaintiffs filed an Amendment to Complaint replacing Doe 11 with Defendant Harris Musafer, M.D. (Dr. Musafer). The complaint alleges that Decedent Steven Esner (Decedent) was a patient of Defendants and that each defendant failed to evaluate and/or treat Decedent resulting in his death on June 18, 2023. The complaint asserts a single cause of action for medical malpractice.

Following Dr. Musafer's ex parte application to continue trial and pursuant to a joint stipulation, on May 26, 2026, the Court continued the trial in this action from June 17, 2026 to January 11, 2027.

On May 29, 2026, Plaintiff's motion to compel depositions first came on for hearing. The Court continued the hearing on this motion and ordered the parties to meet and confer and file a joint separate statement. (Order, 5/20/26.)

On June 12, 2026, the Court entered Judgment in favor of Defendant Lindsey Chan and against Plaintiff pursuant to the Court's ruling on Defendant Lindsey Chan's motion for summary judgment.

On July 6, 2026, the parties filed a joint separate statement.

Legal Standard

"If, after service of a deposition notice, a party to the

action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document...described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document...described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) The motion "shall... set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (b)(1).)

"Any party served with a deposition notice that does not comply with Article 2...waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served." (Code Civ. Proc., § 2025.410, subd. (a).)

Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition...by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

The parties filed a joint separate statement as ordered on May 29, 2026.

Discussion

Plaintiff moves to compel the following employees and agents of Defendant to appear for deposition:

PMK / Entity Depositions

1. PMK re: Identity of Board of Directors as of June 1, 2023;
2. PMK re: Driver's License Number

– Patrick Rafferty;

3. PMK re: Driver's License Number

– Monica Canlas (former employee);

4. PMK re: W-2 Address – Monica

Canlas;

5. PMK re: Identity of Secretaries

Who Prepared Board Minutes (2023);

6. PMK re: Nurse Overall

Responsibility for ICU (current);

7. PMK re: Nurse Overall

Responsibility for ICU on June 17, 2023;

8. PMK re: Efforts to Have Patricia

Luu Sign Her Orders

Individual / Employee

Depositions

9. Valentine Duran – Current Chief

Nursing Officer;

10. Director of Blood Bank (June

2023);

11. Clinical Laboratory Scientist

who processed hemoglobin result of 3.4;

12. Employee who processed the

subject computerized provider order entry / blood order reflected in Exhibit 1

to the notice;

13. Charge Nurse in the ICU on June

17, 2023, during the shift from 7:00 a.m. to 7:00 p.m.; and

Board / Leadership Deposition

14. Jennifer Perez – Board Member.

Based on the joint separate statement, the depositions for Valentine Duran – Current Chief Nursing Officer and Charge Nurse in the ICU on June 17, 2023, during the shift from 7:00 a.m. to 7:00 p.m are either withdrawn or scheduled. The motion is moot as to these depositions.

As to Plaintiff's motion to compel a deposition of Defendant's PMK for the Identity of Board of Directors as of June 1, 2023; Identity of Secretaries Who Prepared Board Minutes in 2023; Nurse with Current Overall Responsibility for the ICU; Nurse with Overall Responsibility for the ICU on June 17, 2023; Driver's License Number – Patrick Rafferty; Driver's License Number – Monica Canlas (former employee); and W-2 Address – Monica Canlas, the Court finds Defendant's arguments that these requests are overburdensome and more efficiently raised in written discovery well-taken. However, absent a protective order or valid objections to the deposition notice, the Court cannot grant relief as Plaintiff has a right to compel these depositions. (Code Civ. Proc., § 2025.010 ["Any party may obtain discovery within the scope delimited by Chapter 2...by taking in California the oral deposition of any person, including any party to the action."].)

The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiff provides matters for examination to guide Defendant in selecting a PMK for deposition. Code of Civil Procedure section 2025.230 provides, in relevant part, that "[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent." The Court does not consider objections at this time.

As to Plaintiff's motion to compel depositions of Director of Blood Bank (June 2023); Employee who processed the subject computerized provider order entry / blood order reflected in Exhibit 1 to the notice; and Jennifer Perez – Board Member, there are no protective orders. Therefore, the Court finds an order compelling these depositions warranted.

As to Plaintiff's motion to compel depositions Clinical Laboratory Scientist who processed hemoglobin result of 3.4, PMK re Efforts of CPH to Have Patricia Luu Sign Her Orders re Decedent, and Employee Who Processed Order for 2 Units of PRBC on June 17, 2023, the Court agrees with Defendant that an order compelling such depositions is not warranted. Defendant represents to the Court, and Defendant represented to Plaintiff while meeting and conferring, that it is not aware of individuals responsive to this request. Therefore, there are no depositions to compel.

As to document requests accompanying the notices of deposition, the issue is not properly before the Court, and the Court does not rule on them. Plaintiff does not submit a proper separate statement in compliance with California Rules of Court, rule 3.1345(a)(5) [separate statement required "[t]o compel...the production of documents or tangible things at a deposition."].) This would require producing the text of each production request and arguments regarding each request. (Cal. Rules of Court, rule 3.1345(c).) No such separate statement was provided for any of the fourteen deposition requests.

Accordingly, this motion is GRANTED IN PART, DENIED IN PART, and MOOT IN PART.

This motion is GRANTED as to Plaintiff's motion to compel a deposition of Defendant's PMK for the Identity of Board of Directors as of June 1, 2023; Identity of Secretaries Who Prepared Board Minutes in 2023; Nurse with Current Overall Responsibility for the ICU; Nurse with Overall Responsibility for the ICU on June 17, 2023; Driver's License Number – Patrick Rafferty; Driver's License Number – Monica Canlas (former employee); and W-2 Address – Monica Canlas; Director of Blood Bank (June 2023); Employee who processed the subject computerized provider order entry / blood order reflected in Exhibit 1 to the notice; and Jennifer Perez – Board Member.

Defendant is ORDERED to produce a PMK and the noticed individuals for deposition within 60 days of this Order without document production. This date may be extended pursuant to agreement between the parties.

This motion is DENIED as to the depositions of Clinical Laboratory Scientist who processed hemoglobin result of 3.4, PMK re Efforts of CPH to Have Patricia Luu Sign Her Orders re Decedent, and Employee Who

Processed Order for 2 Units of PRBC on June 17, 2023.

This motion is MOOT as to Valentine Duran – Current Chief Nursing Officer and Charge Nurse in the ICU on June 17, 2023.

Sanctions

Plaintiff moves for monetary sanctions for misuse of the discovery process and under Code of Civil Procedure section 2025.450.

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2025.450, subd. (g)(1).)

The Court declines to award monetary sanctions. Plaintiff failed to meet and confer in good faith prior to bringing this motion. Moreover, based on the Court’s ruling here and the arguments made by the opposition, the Court finds Defendant acted with substantial justification.

Plaintiff’s Motion for a Protective Order

Plaintiff moves for a protective order concerning Defendant Lindsey Chan’s request for admissions, set one.

Since Defendant Lindsey Chan is no longer a party in this litigation, this motion is taken OFF-CALENDAR.

Moving party to give notice.